

**STATE OF OHIO
BEFORE THE STATE EMPLOYMENT RELATIONS BOARD**

In the Matter of Fact-Finding Between

PERRY TOWNSHIP (STARK COUNTY)

Public Township,

**Case No. 2024-MED-09-1111,
SERGEANTS**

**Fact-finder: Jerry B. Sellman
Date of Report: July 8, 2025**

AND

**FRATERNAL ORDER OF POLICE/
OHIO LABOR COUNSEL, INC.**

Employee Organization

FACT-FINDER'S REPORT AND RECOMMENDATION

APPEARANCES:

FOR THE TOWNSHIP:

Robin L. Bell - Regional Manager/Township Advocate, Clemans, Nelson & Associates, Inc.,
representing Perry Township (Stark County)
James Mathews, Esq. – Law Director for Perry Township, Witness

FOR THE EMPLOYEE ORGANIZATION:

Chuck Aliff - Staff Representative for the FOP/OLC, Inc., representing the Employee Organization
Matt Barker – Sergeant with the Perry Township Police Department, Witness

I. INTRODUCTION

This matter concerns a Fact-finding proceeding between Perry Township (Stark County), Ohio (hereinafter “Township”) and the Fraternal Order of Police, Ohio Labor Council, Inc. (hereinafter “Union”). The State Employment Relations Board (SERB) duly appointed the

undersigned as Fact-finder on April 24, 2025, to conduct a Fact-finding hearing concerning a new Collective Bargaining Agreement for all sworn police officers having the classification of Sergeant. The parties did execute and filed with SERB an Extension/Waiver Agreement, extending the period to hold the fact-finding hearing to May 30, 2025, as provided under Ohio Administrative Code Rule 4117-9-05(G). A Fact-finding hearing was scheduled and took place on May 30, 2025. The Parties were successful in reaching tentative agreements on all provisions of the new collective bargaining agreement, with the exception of Article 32, Section 32.1, Compensation. The Fact-finder, after a brief period of mediation, which did not change the position of the parties, commenced a hearing on the issue.

The Fact-finding proceeding was conducted pursuant to the Ohio Collective Bargaining Law as well as the rules and regulations of the SERB, as amended. During the Fact-finding proceeding, this Fact-finder provided the parties with the opportunity to present arguments and evidence in support of their respective positions on the issues remaining for this Fact-finder's consideration. The Parties waived the taking of a transcript.

In making the recommendations in this Report, consideration was given to all reliable evidence presented relevant to the outstanding issues before me and consideration was given to the following criteria listed in Rule 4117-9-05 (K) of the State Employment Relations Board:

- (1) Past collectively bargained agreements, if any, between the parties;
- (2) Comparison of the unresolved issues relative to the employees in the bargaining unit with those issues related to other public and private employees doing comparable work, giving consideration to factors peculiar to the area and classification involved;
- (3) The interest and welfare of the public, the ability of the public Township to finance and administer the issues proposed, and the effect of the adjustments on the normal standard of public service;
- (4) The lawful authority of the public Township;

- (5) Any stipulations of the parties;
- (6) Such other factors, not confined to those listed above, which are normally or traditionally taken into consideration in the determination of issues submitted to mutually agreed-upon dispute settlement procedures in public service or in private employment.

II. BACKGROUND

General

Perry Township is one of seventeen townships of Stark County, Ohio. It is an urban township; the 2020 census found 28,389 people in the township. The Township is governed by a three-member board of trustees. The Township provides road and bridge maintenance, cemetery maintenance, police protection, fire protection, and emergency medical services. Funding sources for the Township, like other Townships in Ohio, relies on property taxes levied on real estate property. Often, Townships need to collect revenue beyond the minimum millage permitted under the Ohio Constitution to maintain operations. In such an event, a levy must be placed before the voters for a vote. While Perry Township has been successful in raising revenues through Police and Fire levies, the Township has not been successful in seeking revenues for Road Maintenance. Since the last Police and Fire levies passed by thin margins, the Township seeks to be prudent in expenditures made.

This Bargaining-unit consists of three (3) members, all having the classification of Sergeant. Historically, the bargaining-unit has consisted of four (4) members. The Township asserted that the Police Chief was currently interviewing officers to bring the unit back up to four (4) members.

The most recent three-year term Collective Bargaining Agreement (CBA) among the parties expired on December 31, 2024., has been extended by agreement of the parties, and is currently in effect.

The Township and the Union engaged in bargaining sessions on November 12, 2024, December Dec 2, 2024, December 9, 2024, and February 14, 2025. During these negotiation sessions, the Parties reached tentative agreements on all issues, except Compensation. This issue of wages was submitted to the Fact-finder for consideration at the Fact-finding hearing.

The parties are in agreement that Perry Township is financially sound and well-managed. While it has the financial ability to increase the Sergeants' wages under the proposals presented, the primary question in this case is whether it is appropriate under the facts presented to maintain the current wage differential of fifteen percent (15%) above the highest paid Patrol Officer, or to increase the differential to twenty percent (20%), as proposed by the Union.

II. UNRESOLVED ISSUES

The following sets forth the unresolved issue and the Recommendation of the Fact-finder on the remaining disputed issue. The Recommendation is based on a consideration of an overall solution to the positions and concerns of the parties in light of criteria listed in Rule 4117-9-05 (K) of SERB.

1. Article 32, Section 32.1 - Compensation

The Position of the Union

The Union proposes to create a new wage step, "Senior Sergeant," for a sergeant with one or more years' service. A sergeant with less than one year of experience would remain at the current "Sergeant Step," and receive a rank differential of the current fifteen percent (15%) above the highest paid Patrol Officer. A sergeant at the "Senior Sergeant Step," would be compensated

at a rank differential of twenty percent (20%) above the highest paid Patrol Officer.

The Union argues that the increase for Sergeants with more than one-year experience in that position is necessary to fairly compensate the Sergeants commensurate with the increases given to the Patrol Officers whom they supervise. In order to understand the reasoning behind the Sergeant's proposal, it is insightful to understand the successful negotiations that resulted in a new collective bargaining agreement for the Patrol Officers' Unit.

During this negotiation cycle, the Township and the Patrol Officers' bargaining-unit agreed to significant annual wage increases of six percent (6%) effective January 1, 2025, four percent (4%) effective at the start of 2026, and four percent (4%) effective at the start of 2027. In order to address recruitment and retention issues, the Township also agreed to lessen the number of wage steps from seven (7) steps to six (6) steps, and decreased the number of step years necessary to reach the top wage from fifteen (15) years to five (5) years. These measures, taken to expedite the advancement through the wage step schedule, greatly benefited the vast majority of the Patrol Officers who have less than fifteen years' service with the Township. These junior officers will experience financially impactful percentage wage increases at both the start of each new year and mid-year on the occurrence of each of their individual anniversary date as they progress to the next higher step on the new, now-shortened, wage schedule. The decrease in the steps enabled the Patrol Officers to top out on the wage scale ten (10) years earlier than under the prior contract. As a result, these junior officers will experience anywhere from 16.8% - 36.6% wage increase over the three years of the Agreement, depending on the current wage step they are situate.

The four (4) most senior patrol officers who were at the top of the pay scale upon ratification of the Agreement can expect percentage base wage increases of about 14.65% over the life of the CBA. To help offset the financial wage increase disparity between the most senior and

the more junior officers, the Parties agreed to raise the officer-in-charge (OIC) rate of pay from a flat \$2.00/hour to the actual Sergeant rate of pay for all hours worked as OIC. Typically, the most senior officers assigned to a patrol shift serves as OIC. The 2025 increase in the OIC rate of pay combined with the new 2025 hourly rate, actually works out to be about a nine percent (9%) increase in the senior patrol officers' hourly rate of pay for every hour worked as an OIC in 2025. The substantial 2025 increase of the Patrol Officers combined with the base hourly wage rate and OIC rate increase persuaded the Patrol Officer bargaining-unit to accept the terms of their new Agreement. The result of the Patrol increases placed the Officers in a ranking of third place compared to comparable wages earned in comparable jurisdictions presented by the Union. The Township apparently agreed to the wage package to aid in hiring and retaining Patrol Officers, which in the long run saving the Township money by attracting quality Patrol Officers and decreasing the possibility of contiguous Townships and Counties hiring Perry Townships well-paid and trained Patrol Officers.

The Union argues that none of these new contract measures for the Patrol Officers, (1) decreasing the number of wage steps, (2) decreasing the number of step years or (3) increasing the OIC hourly rate, benefited the Sergeant bargaining-unit. It reasons that it is not fair to ignore these factors and fail to consider a comparable increase in wages for the Sergeants. The simple solution to similarly improve the compensation for members of the Sergeant bargaining-unit relative to the other internally comparable co-workers is to create a new wage step, "Senior Sergeant" (sergeant with one or more years' service) that pays the Sergeants at that step a rank differential of twenty percent (20%). This conclusion is based upon an analysis of both internal and external parity among other Sergeants performing similar work.

(INTERNAL PARITY)

1. HEALTH CARE INSURANCE. Perry Township offers medical, dental, vision and prescription healthcare insurance to its' employees and township officials. Insurance plans, benefit levels and costs are reviewed annually during the fall months by the health care committee (HCC), which is comprised of representative members from each bargaining-unit, non-union employees, and township officials. The HCC then provides a non-binding recommendation of an insurance renewal plan to the Board of Trustees ("the Board").

- a. The Board is responsible for selecting the healthcare insurance provider and benefit levels. Effective January 1, 2025, the Board approved the HCC recommendation to move to a Health Savings Account (HSA)- compliant Preferred Provider Plan (Anthem - PPO) with higher deductibles and lower monthly premium costs than the now former (Aultcare - PPO) insurance plan. The new Anthem plan has much higher deductible amounts and maximum out-of-pocket costs, and thus the Board approved funding an HSA up to the 2025 annual in-network maximum-out-of-pocket costs of \$3,675 for the single plan and \$7,350 for the family plan.
- b. The Board approved a Township funded HSA for all employees and officials to offset the employees and officials' higher premium cost share. The employee monthly premium percentage cost share has stood consistently at eight percent (8%) of the total monthly premium costs since at least the 2012 Agreement. Effective January 1, 2025, the HCC recommended that all township employees and officials pay increased monthly premium costs. All township employees and officials using the Township provided insurance plan shall pay ten percent (10%) in 2025; in 2026,

pay fifteen percent (15%), and in 2027, pay twenty percent (20%) of the total monthly premium.

- c. The HCC meetings were held separately from contract negotiations between the Township and its various bargaining-units during the fall/winter of 2024. The two police bargaining-units negotiated separately with the Patrol Officer bargaining-unit agreeing to a successor Agreement in January 2025. Ultimately, the health care insurance terms negotiated between the Township and the Patrol Officers were adopted by the other employee groups, including the Sergeants' bargaining-unit.

2. WAGES. In light of the significant increases in health care insurance premium cost sharing arrangement for employees, the Patrol Officers, AFSCME and IAFF bargaining-unit members, did secure significant wage gains in their respective successor Agreements to compensate for those anticipated increases. The Patrol Officers were discussed above.

AFSME's combined effect of the annual wage adjustments, the percentage increases and the targeted wage supplemental stipends have resulted in significant wage increases for ASCME members far above what the Township has offered the Sergeants bargaining unit. The AFSCME members negotiated wage increases consisting of the following: 2025, \$1.00/hour wage adjustment, then a three percent (3%) increase; 2026, \$0.50-\$0.75/hour wage adjustment, then a three percent (3%) increase; and 2027, \$0.50/hour wage adjustment, then a three percent (3%) increase. Additionally, various new stipends were created in 2025 for "senior foreman" (\$1.50/hour above the foreman hourly rate), education stipend (\$0.50/hour), grant writer stipend (\$0.50/hour), ASE/EVT certification stipend (\$0.10/hour for each certificate and up to \$2.00/hour maximum), all added to the base hourly rates listed in the new wage table. The combined effect of

the annual wage adjustments, the percentage increases and the targeted wage supplemental stipends have resulted in significant wage increases for ASCME members far above what the Township has offered the Sergeants bargaining-unit.

IAFF members have not ratified their agreement yet, but the economic elements of the ratified agreement are 1) creation of a new classification series: FF/EMT-1, FF/EMT-2 and FF/EMT-3, 2), a wage adjustment of \$1.85/hour added to the base hourly rate of pay and phased in over three (3) years, and 3) annual raises of three percent (3%) applied to the combined hourly rates plus wage adjustments. The IAFF wage increases exceed what the Township has offered to the Sergeants bargaining-unit.

In light of these internal comparisons, the Sergeants believe that although they willingly shared in the same significant percentage increases in their share of the employee healthcare costs with the other Perry Township employees, they are not similarly sharing in the same economic increases.

(EXTERNAL COMPARISONS)

Understaffing of the Perry Township Police Department has been a challenge for a number of years. During negotiations with the Patrol Officers, the Township representatives assured the union that the Township's near-term goal is to increase the Patrol Officer staffing to twenty-three (23) officers; currently there are eighteen officers. Staffing has remained at eighteen (18) officers.

Historically, the communities to which Perry Township has typically been compared with other law enforcement agencies located in the following townships or cities: Townships of Lake, Lawrence, and Jackson, and the cities of Canal Fulton, Canton, Louisville, Massillon, and North

Canton.¹ Louisville does not have employees holding the Sergeant rank and thus are not included in the Sergeant externally comparable grouping. The following is a chart setting forth the demographic census information¹ upon which this comparison is made:

Table: Demographic Census ¹ Information, External Comparables

Entity	Population ²	Median Value Owner Occupied Houseing	Home Ownership Rate	Median Household Income	Poverty
Stark County	372,716	\$177,700	68.6%	\$65,740	12.3%
ALLIANCE	21,525	\$113,300	48.6%	\$54,608	24.1%
CANAL FULTON	5,333	\$184,500	66.6%	\$62,025	14.1%
CANTON	69,197	\$94,400	47.5%	\$39,754	28.4%
JACKSON ³	43,067	\$283,800	71.1%	\$90,699	5.3%
LAKE ³	30,324	\$264,600	83.5%	\$97,862	3.5%
LAWRENCE ³	13,548	\$198,700	81.9%	\$78,986	8.8%
MASSILLON	32,439	\$138,800	64.7%	\$55,308	14.6%
NORTH CANTON	17,637	\$194,200	69.2%	\$72,193	6.2%
PERRY ³	28,329	\$166,700	78.8%	\$68,013	9.9%
Averages:	29,044	\$182,111	68.0%	\$68,828	12.8%

Notes

1. <https://data.census.gov/table> Quick Facts

2. Population July 1, 2023

3. <https://data.census.gov> American Community Survey

Recruiting and retaining talented employees has never been more challenging. As the

¹ The Union references a 2015 Fact-finding Report and Recommendation (2015-MED-09-09491 and 2015-MED-09-0950) as support for their comparative jurisdictions.

Township attempts to recruit more officers and increases the staff to twenty-three (23) Patrol Officers, the duties and responsibilities of the Sergeants will become more difficult. It is important that the increase in pay upon promotion to a Perry Township Sergeant from Patrol Officer reflect at least the average contractually expressed rank differential for Perry Township's externally comparable groups, which currently, it does not. See the comparative chart below:

Table: Rank Differential ¹-- Sergeant Percentage Amount above Highest Paid Patrol Officer

Employer		Rank Differential Express Percentage ²	Rank Differential Calculated Percentage
ALLIANCE	CITY	--	
CANAL FULTON	CITY	15.50%	
CANTON	CITY	20.00%	
JACKSON ³	TWP	--	16.62%
LAKE	TWP	11.00%	
LAWRENCE	TWP	--	
MASSILLON	CITY	17.00%	
NORTH CANTON	CITY	19.00%	
PERRY	TWP	15.00%	
Average:		16.25%	

Notes:

1. Source, respective CBA, <https://serb.ohio.gov/view-document-archive/collective-bargaining-agreements>

2. "--" not expressly stated in the CBA

3. Sergeant CBA duration Sep 1-Aug 31 each year (Patrol CBA duration Jan 1-Dec 31 each year).

Calculated Average: RD = (\$92,372.8-\$81499.83)/\$81499.83 & (\$97718.4-\$81499.83)/\$81499.83

It is now time to raise the Sergeant rank differential from its current long-standing rate to ensure a sufficient salary increase commensurate with the training and experience gained once promoted and to also incentivize the best and most capable Perry Township Patrol Officers to put in the necessary work toward gaining the requisite education and experience of a leader and supervisor within the department and thus improving their qualifications and chances of one day being eligible for promotional considerations to Sergeant.

The Perry Township Sergeants are not merely first line supervisors, the Sergeants have in addition to their core supervisory duties, administrative duties that in most other departments are more aptly assigned to higher ranking police managers and administrators. Having a bevy of additional duties on top of their core supervisory duties makes Perry Township supervisors somewhat unique in that many other agencies have higher ranking officers, above the rank of Sergeant, that are assigned many of the administrative responsibilities assigned to Perry's Sergeants. Perry's Sergeants have more supervisory duties than other comparable jurisdictions as shown below:

Table: Officer=Staffing ^{1,2}– Stark County Township and Municipal Law Enforcement Agencies

Employer		Patrol Officer	Sergeant	Lieutenant	Captain	Major ³	Deputy Chief ³	Chief ³	# Patrol Ofcs. / # Sergeants
ALLIANCE ⁴	CITY	26	4	4	2	--	--	1	6.5
CANAL FULTON ⁵	CITY	7	1	--	--	--	--	1	7.0
CANTON ⁶	CITY	113	17	10	3	--	--	1	6.6
JACKSON ⁷	TWP	47	6	3	--	1	--	1	7.8
LAKE ⁸	TWP	10	2	1	--	--	--	1	5.0
LAWRENCE ⁹	TWP	7	2	--	--	--	--	1	3.5
MASSILLON ¹⁰	CITY	32	7	5	2	--	--	1	4.6
NORTH CANTON ¹¹	CITY	19	6	1	--	--	--	1	3.2
PERRY (current) ¹²	TWP	18	3	--	--	--	1	1	6.0
Average:		31	5	4	2	1	1	1	6

Projected Staffing:

Perry	Twp	23	3	--	--	--	1	1	7.7
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Currently there are three (3) Sergeants, though historically there have been four (4). This past fall of 2024, Perry Township changed its long-standing organizational structure and promoted a Sergeant to the rank of Deputy Chief (DC) and provided the DC the same salary as the Chief of Police. The DC received a fifteen percent (15%) salary increase and shares the responsibilities of the Chief of Police. Other than there being one less first line supervisor, the Sergeants' duties and responsibilities have remained unchanged.

Based upon the external comparisons as set forth above, the Union's proposal would place the Perry Township Sergeants more in line with their comparable jurisdictions and the responsibilities that they are assuming. The effect of the adoption of the Union's proposal would place this unit's compensation in the position as set forth in the following table:

TABLE: WAGES, ¹ SERGEANT, UNION PROPOSAL - Perry Sergeants 15% Rank Differential (1 year/less), 20% Rank Differential (1 or more years)

Employer	Pop	Co	Union	Local	BU	Size	Start		Effective		Entry Level	Ranking	Top Level	Ranking
							Date	End Date	Date					
ALLIANCE ²	CITY	21,672	STAR	FOP	OLC	SS	4	1/1/2023	12/31/2025	1/1/2025	\$66,851.20	9	\$66,851.20	9
CANAL FULTON ³	CITY	5,325	STAR	FOP	OLC	SM	1	1/1/2025	12/31/2027	1/1/2025	\$82,118.40	7	\$82,118.40	7
CANTON ⁴	CITY	70,872	STAR	FOP	OLC	SS	17	1/1/2025	12/31/2027	1/1/2025	\$89,992.80	3	\$89,992.80	4
JACKSON ⁵	TWP	42,817	STAR	FOP	OLC	SS	6	9/1/2024	8/31/2027	9/1/2025	\$97,718.40	1	\$97,718.40	1
LAKE ⁶	TWP	26,995	STAR	FOP	OLC	SM	2	5/1/2024	4/30/2027	5/1/2025	\$75,197.62	8	\$75,197.62	8
LAWRENCE	TWP	8,223	STAR	FOP	OLC	SM	2	1/1/2025	12/31/2027	1/1/2025	\$82,492.80	6	\$82,492.80	6
MASSILLON ⁷	CITY	32,146	STAR	FOP	105	SS	7	7/1/2021	6/30/2024	1/1/2025	\$83,813.18	5	\$83,813.18	5
NORTH CANTON ⁸	CITY	17,842	STAR	FOP	OLC	SS	6	1/1/2024	12/31/2026	1/1/2025	\$92,705.60	2	\$92,705.60	2
PERRY ^{9,10}	TWP	28,337	STAR	FOP	OLC	SS	4	1/1/2025	12/31/2027	1/1/2025	\$87,092.72	4	\$90,879.36	3
Count of Employers: 9										Average: \$84,220.30		\$84,641.04		

Notes:

1. Respective CBA, <https://serb.ohio.gov/view-document-archive/collective-bargaining-agreements>
2. Number Sergeants: <https://www.alliancepolice.com/contact-us>
3. Number Sergeants: <https://www.cityofcanalfulton-oh.gov/police-department/page/staff-directory>
4. Number Sergeants: <https://www.cantonohio.gov/DocumentCenter/View/7030/Police---2024-Annual-Report-PDF?bidid=>
5. Number Sergeants: <https://jacksontwp.com/patrol-division/>
6. Number Sergeants: <https://uniontownpd.org/officers-%26-staff>
7. Number Sergeants: <https://massillonohio.gov/police-department/patrol-division/>
8. Number Sergeants: <https://northcantonohio.gov/Directory.aspx?DID=9>
9. Current number Sergeants three (3) with one (1) vacancy
10. 2025 Wage based on 1/1/2025 Patrol top pay and Sergeant Rank Differential 20%

The wage increases for the Sergeants will jump them to a third position ranking, which is the same level to which the Patrol Officers' rate increases advanced them, and this Unit deserves to be treated the same. The cost to the Township per Sergeant is negligible. The cost difference between the Union's proposal (remain at 15%) and the Township's proposal (increase to 20%) is only \$13,809 for the first year of the Agreement (\$4,603 per officer, with roll-up included), \$19,148 for the second year (\$4,787 per officer x4, with roll-up included), and \$19,912 for the third year of the Agreement (\$4,978 per officer x4), for a total of \$52,869 for the life of the new Agreement. That is not a significant amount of money to compensate the Sergeants for their extra responsibilities and provide them with a comparable wage as paid in comparable jurisdictions.

For all of these reasons, the Union's wage proposals should be recommended.

The Position of the Township

The Township proposes current contract language which provides for a 15% rank

differential.

The bargaining-unit employees' competence and worthiness are not at issue. The Township very much appreciates the service of these public employees to the Township and its citizens. And the Township has already agreed to matters which would improve employment with the Township by agreeing to an additional holiday, an increase in uniform allowance, an increase in funeral leave, and improved insurance benefits with the Township providing the funding toward each employee's HSA.

However, the Township also has a responsibility to the citizens to be fiscally responsible, and a responsibility to be fair to other Perry Township employees. Any increase in rank differential for this bargaining-unit, which would provide greater increases than other bargaining-units, is simply not warranted. The effective percentage increase given to the Patrol Officers is 14.9% over the three-year term.² That was justified for both recruiting and retention purposes. The increase requested by the Union, however, would result in a 19.5% increase for the Sergeants over the three-year term of this contract. Under the Township's proposal, the increase to the Sergeants would be 14.9%, or an amount of increase equal to the Patrol Officer increases. This additional 4.6% is not justified.

While the Townships ability to finance an increase in wages for its police department is not in dispute, the Township Trustees need to be prudent in the expenditure of the revenues they receive from the levies voted on by the residents. Past tax levies were passed by slim margins, and there is no guarantee that further levies to fund large increases would be approved by the voters.

² The Arbitrator recognizes that the increase in wages for the Patrol Officers in the first year includes an amount for firearms proficiency, which is not new money, for it was paid in the past. But it was rolled up into the wage scale and was reflected by the Employer as an increase benefiting the Patrol Officers in each year of a step increase and in subsequent year wages.

The Township believes the comparable jurisdictions for wage and benefit comparisons should be only townships and should not include other cities as argued by the Union. This conclusion is based upon the fact that townships generate their revenues differently than cities, who can generate additional revenues from income taxes. They, therefore, can afford higher wages and benefits. The following are the townships in Stark County and contiguous counties that the Township believes to be most comparable to Perry Township:

TOWNSHIPS IN STARK AND CONTIGUOUS COUNTIES							
SORTED BY MAXIMUM ANNUAL RATE							
Agency	Year	Contractual Sgt. Rank Differential	Calculated Differential	Hourly Rate		Annual Rate	
				Min	Max	Min	Max
Jackson Township	2025	N/A	19.90%	\$46.98	\$46.98	\$97,718.40	\$97,718.40
Copley Township	2024	N/A	13.02%	\$45.84	\$45.84	\$95,347.20	\$95,347.20
Bath Township	2025	12.25%		\$43.19	\$45.20	\$89,835.20	\$94,016.00
Brimfield Township	2025	15.00%		\$44.99	\$44.99	\$93,575.04	\$93,575.04
Sagamore Hills	2025	16.00%		\$43.99	\$43.99	\$91,499.20	\$91,499.20
Perry Township (2025 patrol wage)	2025	15.00%	15.00%	\$41.52	\$41.52	\$86,361.60	\$86,361.60
Average		13.96%	13.77%	\$40.10	\$40.44	\$83,415.95	\$84,107.92
Lawrence Township	2025	15.50%		\$39.66	\$39.66	\$82,492.80	\$82,492.80
Boardman Township	2025	13.00%		\$38.66	\$38.66	\$80,407.18	\$80,407.18
Springfield Township (Summit)	2025	N/A	10.77%	\$36.06	\$38.04	\$75,000.31	\$79,123.20
Austintown Township	2025	N/A	11.63%	\$37.42	\$37.42	\$77,833.60	\$77,833.60
Lake Township	2025	11.00%		\$36.15	\$36.15	\$75,197.62	\$75,197.62
Poland Township	2025	12.00%		\$35.60	\$35.60	\$74,048.00	\$74,048.00
Springfield Township (Mahoning)	2025	N/A	12.44%	\$32.71	\$32.71	\$68,036.80	\$68,036.80

As seen from the chart, Perry Township pays their Sergeants an above average differential and ranks 6th among its peers. Jackson and Copley Townships actually bring the average up, but their higher median home values and higher median household income levels allow these townships to raise higher revenues than Perry Township.

Even if one were to consider adding the Stark County Sheriff and the cities of Canton, North Canton, and Massillon to the equation, Perry Township Sergeants would still rank above the average wage paid among those comparisons.

TOWNSHIPS WITH STARK SHERIFF AND CITIES OF CANTON, NORTH CANTON, AND MASSILLON
Sorted by Maximum Annual Rate

Agency	Year	Contractual Sgt. Rank Differential	Calculated Differential	Hourly Rate		Annual Rate	
				Min	Max	Min	Max
Jackson Township	2025	N/A	19.90%	\$46.98	\$46.98	\$97,718.40	\$97,718.40
Copley Township	2024	N/A	13.02%	\$45.84	\$45.84	\$95,347.20	\$95,347.20
Bath Township	2025	12.25%		\$43.19	\$45.20	\$89,835.20	\$94,016.00
Brimfield Township	2025	15.00%		\$44.99	\$44.99	\$93,575.04	\$93,575.04
North Canton	2025	19.00%		\$44.57	\$44.57	\$92,705.60	\$92,705.60
Sagamore Hills	2025	16.00%		\$43.99	\$43.99	\$91,499.20	\$91,499.20
Stark County SO	2025	14.75%		\$40.89	\$41.89	\$85,051.20	\$87,131.20
Perry Township (2025 patrol wage)	2025	15.00%	15.00%	\$41.52	\$41.52	\$86,361.60	\$86,361.60
Canton City	2025	20.00%		\$40.70	\$40.70	\$84,660.00	\$84,660.00
Average		15.05%	14.58%	\$40.48	\$40.79	\$84,200.71	\$84,849.69
Massillon City	2025	17.00%		\$40.29	\$40.29	\$83,803.20	\$83,803.20
Lawrence Township	2025	15.50%		\$39.66	\$39.66	\$82,492.80	\$82,492.80
Boardman Township	2025	13.00%		\$38.66	\$38.66	\$80,407.18	\$80,407.18
Springfield Township (Summit)	2025	N/A	10.775%	\$36.06	\$38.04	\$75,000.31	\$79,123.20
Austintown Township	2025	N/A	11.635%	\$37.42	\$37.42	\$77,833.60	\$77,833.60
Lake Township	2025	11.000%		\$36.15	\$36.15	\$75,197.62	\$75,197.62
Poland Township	2025	12.000%		\$35.60	\$35.60	\$74,048.00	\$74,048.00
Springfield Township (Mahoning)	2025	N/A	12.444%	\$32.71	\$32.71	\$68,036.80	\$68,036.80

In addition to the above external comparables, the State Employment Relations Board (SERB) 2024 Annual Wage Settlement Report reflects that the Sergeant's wage increases statewide averaged 3.86% for 2024; the Columbus region wage increases were above the reported Local (Akron/Canton), Statewide, Township, and Police average wage increases over the last three years, as well as over a six-year comparison.

The Township acknowledges that internally, the Police Officers and the Sergeants did receive a lesser increase than the Fire and AFSCME Bargaining-units, but their wages were significantly less than those of the Police to begin with. The Union argued that a records clerk in the AFSCME received a 20% increase, but those classifications were paid significantly less than either a Patrol Officer or a Sergeant. Wages of lower paid employees are often raised at a higher percentage to bring them to a minimal market rate. As an example, raising a \$17.00 per hour employee wage 20% results in a far different cost than raising a \$41.00 per hour employee at the

same percentage rate. In this case, the Sergeants are at the proper market rate.

The Township can responsibly implement wage increases reflected in the fifteen percent (15%) wage differential in each of the next three years. The Township recognizes that maintaining the current fifteen percent (15%) differential will not cause the Sergeants to be the highest paid amongst the Union's hand-picked comparable jurisdictions, but they will remain being paid above the average wage rate, and wage differential of comparable jurisdictions.

Discussion, Findings and Recommendation

The Township is currently in excellent financial condition as measured by its healthy General Fund carryover balance. There is little argument that the Township can absorb increased salaries for its police and recognizes that healthy increases are needed due to the need to recruit and retain Police Officers and likewise to advance the salaries of the Sergeants resulting from their rank differential, but it believes it must be prudent in the amount of any wage increases it agrees to give the Police Officers and Sergeants over a three-year period because of limited revenues generated from current levies.. It believes that the current rank differential, keeping in mind the increases given to the top Police Officer wage step, in light of comparable wages paid to Sergeants in external police departments, is fair and reasonable.

The Union believes that the Sergeants wage differential should be increased for several reasons: (1) it is unfair for the Patrol Officers, primarily due to a decrease in wage steps and increased OIC hourly rates, to receive an overall higher wage increase than that provided by the current rank differential; (2) the Sergeants supported the increase in employee contributions for insurance premiums (offset with better coverage and a funded HSA), but the level of increase in wages for the Patrol Officers helped them pay for the increases while the Sergeants did not get an increase in rank differential to cover these increases; (3) the Sergeants have more responsibilities

than other comparable contiguous jurisdictions because they must also perform the same duties that are performed in other jurisdictions by higher ranking officers (Lieutenants, Captains) and they, on average, supervise more subordinates than those jurisdictions; (4) a 20% rank differential is needed to place this bargaining-unit on par with other comparable jurisdictions; and (5) an increase in rank differential would move the Sergeants to a third position among comparable jurisdictions, which is comparable to the level to which the Patrol Officers were moved as a result of their wage increases.

The first observation is that the members of the Sergeants' Bargaining-unit, compared to comparable jurisdictions selected by both the Union and Township, are paid an above average rank differential and above average wages. That reflects a positive approval and commitment of the Community through levies, the commitment and appreciation of the Township Trustees for a well-paid police department, and a recognition of the need for high-quality law enforcement. The issue for the Fact-finder is to determine what is an appropriate wage rank differential for this unit in light of the interest and welfare of the public, the ability of the Township to finance and administer the issues proposed, and the effect of the adjustments on the normal standard of public service.

The Fact-finder recognizes the emotional side of the Union's argument that Sergeants are either disappointed or frustrated that a number of the police officers that they supervise will receive a higher percentage wage increase than they will under the current rank differential of 15% due to a compression of the steps to advance to the next level of compensation and the increase in the OIC hourly wage, but the practicality of raising those wages of Patrol Officers was necessary for recruiting and retaining the officers. Notwithstanding the increases received by the Patrol Officers' Unit, the Sergeants factually did receive a wage of 15% more than the highest paid Patrol Officer due to their rank differential. As such, while it is understandable why the Sergeants advanced this

argument, it is not a basis for increasing the rank differential percentage when considering the interest of the public welfare. They are paid more for their responsibilities than their subordinates, even though some will advance in wages quicker because of the reduction in the number of years to advance to the next wage step level.

The argument that the Patrol Officers received more wages to offset employee contributions to health care premiums may be the effective result of the overall wage increases received by some of the Patrol Officers, but, as argued above, the Sergeants nonetheless received an increase due to the police officer top step level increases. The fact that some Patrol Officers may have effectively received a higher wage increase due to the factors previously cited, an argument that Sergeants should therefore have a similar increase is not persuasive.

Likewise, the argument that an increase in rank differential based solely upon a showing that a 20% differential is needed to place this bargaining-unit at a higher ranking than other comparable jurisdictions is not supported by the evidence. Evidence indicates that the City of Canton may have a 20% rank differential, but Canton has more than twice the population and more than six times the number of police officers. Massillon may have a 17% rank differential, but it has a larger population and more patrol officers to supervise. Jackson has a 19.9% rank differential, but it is not only a much wealthier township, it has a higher population and more police officers to supervise. While balancing these statistics with other jurisdictions' comparables may give support for a higher differential for this unit, it does not support an increase to a 20% rank differential.

The argument that an increase in rank differential would move the Sergeants to a third position among comparable jurisdictions, which is comparable to the level to which the Patrol Officers were moved as a result of their wage increases is a cogent argument, but there must be a public interest basis for the Township to expend more money for Sergeants that is necessary to

maintain and attract senior police officers. It was apparently demonstrated by the Patrol Officers that their step wage increases needed to be compressed to attract and retain those bargaining-unit members. That did result in an elevation of their position among comparable jurisdictions. There is no rational basis to then increase the Sergeants differential for this reason alone.

I find that while considering these factors as a whole and considering the evidence of the supervisory duties of these Sergeants compared to Sergeants in other comparable jurisdictions, there is a justification for a rank differential increase due to the duties and responsibilities of the members of this bargaining-unit. The current number of Patrol Officers supervised by these Sergeants is similar to that of other jurisdictions, but considering the number of Patrol Officers management deems necessary to meet the public needs in the Township, more Patrol Officers are needed. While it is anticipated that another Sergeant will be hired in the near future, even with four Sergeants, those Sergeants will be supervising more Patrol Officers and taking on more responsibilities without higher ranking officers (Lieutenants and Captains). Because of the demonstrated current level of duties and responsibilities of the Sergeants, and those anticipated over the term of this new Agreement, the Fact-finder believes that a 2% increase in the rank differential to 17% is justified and in the public interest. The Fact-finder arrives at this percentage based upon the demographics of comparable townships and a couple of comparable cities provided by the parties. Additionally, the evidence supports a finding that the Township can afford the increase. Increasing the rank differential to increase the wages of an individual Sergeant is beneficial to the Township for it will involve far less cost than hiring higher supervisory officers or several additional Sergeants.

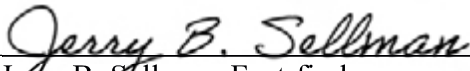
RECOMMENDATION

It is recommended that the Parties create a new wage step, "Senior Sergeant," for a sergeant with one or more years' service. A sergeant with less than one year of experience would remain at the current "Sergeant Step," and receive a rank differential of the current fifteen percent (15%) above the highest paid Patrol Officer. A sergeant at the "Senior Sergeant Step," would be compensated at a rank differential of seventeen percent (17%) above the highest paid Patrol Officer.

CONCLUSION

In conclusion, this Fact-finder hereby submits the above-referenced recommendations on the outstanding issues presented to him for his consideration. Further, the Fact-finder incorporates all tentative agreements previously reached by the parties and recommends that they be included in the Parties' Final Agreement.

July 8, 2025


Jerry B. Sellman, Fact-finder

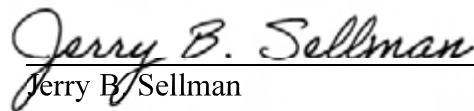
CERTIFICATE OF SERVICE

The undersigned certifies that a true copy of the Fact-finder's Report was sent by E-mail on July 8, 2025, to:

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